

SENATE BILL 753

By Yager

AN ACT to amend Tennessee Code Annotated, Title 49,
Chapter 6, relative to early childhood education.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-6-104, is amended by deleting subdivision (c)(2) and substituting:

(2) If the number of at-risk children seeking to enroll in an LEA's voluntary pre-kindergarten program on the date of the initial enrollment deadline does not meet the maximum class size of the pre-kindergarten classroom provided by the LEA as part of the LEA's voluntary pre-kindergarten program, then the LEA may enroll children who are not at-risk children, but who:

(A) Reside within the geographic area served by the LEA and who are:

(i) Four (4) years of age, with or without a disability, on or before August 15;

(ii) Three (3) years of age on or before August 15 and:

(a) Who have been in the Tennessee Early Intervention System (TEIS); or

(b) Who are screened and identified as educationally at-risk, as determined pursuant to the Individuals with Disabilities Education Act (20 U.S.C. § 1400 et seq.); or

(iii) Three (3) years of age on or before August 15, who are members of families with incomes that meet the eligibility requirements

for free or reduced-price lunch, as determined pursuant to 42 U.S.C. § 1771; or

(B)

- (i) Reside outside the geographic area served by the LEA;
- (ii) Are children of a parent employed by the LEA; and
- (iii) Are four (4) years of age on or before August 15.

SECTION 2. Tennessee Code Annotated, Section 49-6-104, is amended by adding the following as a new subsection:

(f) An LEA that authorizes a child to enroll in the LEA's voluntary pre-kindergarten program pursuant to subdivision (c)(2)(B) may charge the child's parent tuition and fees in an amount that is no more than the LEA's costs of the child enrolling and attending the program.

SECTION 3. Tennessee Code Annotated, Section 49-6-107(d), is amended by adding ", except as authorized pursuant to § 49-6-104(f)" after "§§ 49-6-103 — 49-6-110".

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.